

## 26SMCV01743 26SMCV01743

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### Tentative Ruling

Aleksandra Balinska v. Ohad Broide, et al., Case No. 26SMCV01743

Defendant Solan Games' Motion to Quash Service of Summons

Hearing Date: September 10, 2026

### Background

Plaintiff Aleksandra Balinska sues Defendants Solan Games, Inc. and Ohad Broide for (1) breach of contract; (2) promissory estoppel; (3) intentional misrepresentation; (4) breach of the implied covenant of good faith and fair dealing; (5) declaratory relief; (6) constructive trust; (7) unjust enrichment; (8) accounting; and (9) inspection of books and records. Balinska alleges that Solan Games hired her "in a senior operational leadership capacity" on July 22, 2024, and that her compensation included an 8.8 % ownership stake in the company. (Complaint, ¶ 27.) Balinska alleges that she was terminated a year and a half later and never received the equity she was promised. (Id. at ¶¶ 31-32.)

On March 12, 2026, Balinska filed the complaint.

On May 11, 2026, Solan Games filed this Motion to Quash. This motion was continued several times because Balinsk obtained new counsel between the date the motion was filed and the hearing. On August 27, 2026, Balinska filed opposition. On September 2, 2026, Solan Games replied.

### Arguments

Solan Games moves to quash service of summons on the grounds that the Court lacks jurisdiction over Solan Games, a Delaware Corporation managed entirely from Nova Scotia, Canada with no contacts with the state of California. (Motion to Quash, p. 2.) Solan Games argues that its only connection with California is that it briefly contemplated establishing a Santa Monica address and used the potential address to register with Dun & Bradstreet to obtain a DUNS number. (Id. at p. 3.) Solan Games further argues that Balinska signed her employment contract at her home in Warsaw, Poland, and performed all services under the contract from her home in Poland. (Id. at pp. 3-4.) In the alternative, Solan Games argues that the Court should dismiss or stay this action under the forum non conveniens doctrine because Delaware is a adequate and proper alternative venue. (Id. at p. 11.)

In opposition, Balinska argues that Solan Games held itself out to be a California company by using a Santa Monica address online, in invoices, and in its privacy policy. (Opposition, p. 5.) Balinska argues that in doing so, Solan Games purposefully availed itself of California, and became subject to California jurisdiction. (Id. at pp. 5-6.) Balinska argues that her claims arise from Solan Games' contacts with California because she believed Solan Games to be a California company and because the exercise of jurisdiction would be reasonable. (Id. at p. 8.) Balinska also argues that Solan Games is estopped from denying a California presence because it had actual knowledge that it held itself out as a California company and should not now be able to deny those assertions. (Id. at pp. 8-9.) Balinska also asks the Court to deny dismissal or a stay under the forum non conveniens doctrine. (Id. at p. 9.)

In reply, Solan Games argues that Balinska has not met her burden of establishing jurisdiction. Solan Games argues that Balinska's evidence only establishes what she subjectively understood about Solan Games' California presence, which is not evidence of the company's forum contacts. (Reply, p. 2.) Solan Games argues that the Santa Monica address appeared on several websites because it auto-populated from Solan Games' Dun & Bradstreet profile, which it created while it was contemplating establishing a Santa Monica office. (Id. at p. 5.) Solan Games argues that it is not estopped from contesting personal jurisdiction because personal jurisdiction can only be intentionally waived and Balinska's waiver argument is based on unintentional representations. (Id. at pp. 8-9.) In the alternative, Solan Games argues that the Court should stay or dismiss this action on forum non conveniens grounds. (Id. at pp. 9-10.)

#### Motion to Quash Service of Summons for Lack of Jurisdiction

Code of Civil Procedure, section 418.10 states the following: "(a) A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her." (Code Civ. Proc., § 418.10, subd. (a)(1).) 2

Although the defendant is the moving party on a motion to quash service of process, the burden of proof is on the plaintiff in opposing the motion: "[W]hen jurisdiction is challenged by a nonresident defendant, the burden of proof is upon the plaintiff to demonstrate that 'minimum contacts' exist between defendant and the forum state to justify imposition of personal jurisdiction." (Mihlon v. Sup.Ct. (Murkey) (1985) 169 Cal.App.3d 703, 710; Floveyor Int'l, Ltd. v. Sup.Ct. (Shick Tube-Veyor Corp.) (1997) 59 Cal.App.4th 789, 793; Elkman v. National States Ins. Co. (2009) 173 Cal.App.4th 1305, 1313.) The burden is on the plaintiff to demonstrate by a preponderance of the evidence that all jurisdictional criteria are met. (Ziller Electronics Lab GmbH v. Sup.Ct. (Grosh Scenic Studios) (1988) 206 Cal.App.3d 1222, 1232.) If plaintiff meets this burden, "it becomes the defendant's burden to demonstrate that the exercise of jurisdiction would be unreasonable." (Buchanan v. Soto (2015) 241 Cal.App.4th 1353, 1362; Swenberg v. Dmarcian, Inc. (2021) 68 Cal.App.5th 280, 291.) 2

Jurisdictional facts must be proved by admissible evidence. This generally requires documentary evidence and declarations by competent witnesses. (Rivelli v. Hemm (2021) 67 Cal.App.5th 380, 402; In re Automobile Antitrust Cases I & II (2005) 135 Cal.App.4th 100, 110.) 2

#### Request for Judicial Notice

Solan Games requests judicial notice of (1) its certificate of incorporation, filed with the Delaware Department of Corporations; and (2) Fusion VC I, LP's SEC Form D Notice of Exempt Offering of Securities, filed with the SEC on or about October 15, 2021.

Notice is GRANTED.

#### Discussion

The extent to which a California court can exercise personal jurisdiction over a defendant depends on the nature and quality of defendant's "contacts" with the state. U.S. Supreme Court decisions recognize two types of jurisdiction: (1) "general" and (2) "specific." (See *Bristol-Myers Squibb Co. v. Sup.Ct. of Calif., San Francisco County* (2017) 582 U.S. 255, 262.)

## General Jurisdiction

General jurisdiction requires "substantial . . . continuous and systematic" contacts with California, i.e., the defendant's contacts with the forum are so wide-ranging that they take the place of a physical presence in the state. (*Vons Companies Inc. v. Seabest Foods, Inc.* (1996) 16 Cal.4th 434, 452.)

Balinska does not contend that Solan Games has sufficient contacts with California to establish general jurisdiction. As no party contends that California has general jurisdiction over Solan Games and following a review of the evidence presented showing that Solan Games is incorporated in Delaware and does not lease offices or employ staff in California, the Court finds no general jurisdiction. (See Broide Decl., ¶¶ 3-4, Exhibit B.)

## Specific Jurisdiction

Specific jurisdiction exists where contacts are insufficient for general jurisdiction, but the contact is related to the cause of action presented. (*Epic Communications, Inc. v. Richwave Technology, Inc.* (2009) 179 Cal.App.4th 314, 327.) For specific jurisdiction, "courts consider the relationship among the defendant, the forum and the litigation." (*Snowney v. Harrah's Entertainment, Inc.* (2005) 35 Cal.4th 1054, 1062.) A court may exercise specific jurisdiction over a nonresident defendant only if: "(1) the defendant has purposefully availed himself or herself of forum benefits; (2) the controversy is related to or arises out of the defendant's contacts with the forum, and (3) the assertion of personal jurisdiction would comport with fair play and substantial justice." (*Id.*)

Balinska does not meet her burden of proof of showing that Solan Games purposefully availed itself of California.

"The first step in specific jurisdiction analysis involves a qualitative evaluation of the defendant's contact with the forum state. Specifically, we look for 'some act by which the defendant purposefully avails itself of the privilege of conducting activities within the forum state, thus invoking the benefits and protections of its laws.' This purposeful availment requirement is the test for the fundamental determination of whether 'the defendant's conduct and connection with the forum state are such that he should reasonably anticipate being haled into court there.'" (*Lake v. Lake* (2001) 817 F.2d 1416, 1421, quoting *Hanson v. Denckla* 357 U.S. 235, 253; *World-Wide Volkswagen v. Woodson* (1979) 444 U.S. 286, 297.) It is Plaintiff's burden to establish that Solan Games purposefully availed itself of California. (*Murkey, supra*, 169 Cal.App.3d 703.)

Balinska's evidence shows that she believed that Solan Games was operated out of Santa Monica, California; that a privacy policy referenced a Santa Monica address, and that the Santa Monica address was used on invoices. (See Balinska Decl., ¶ 5, Exhibits 1, 5.) The invoices Balinska references are invoices for her own work, that she appears to have generated. (See Balinska Decl., Exhibit 1, p. 1 ["Person authorized to issue the invoice ¶ Alkesandra Balinska"].)

Balinska produces no case law showing that a subjective belief that a company is based in California is sufficient to establish jurisdiction. Solan Games' evidence shows that they never operated out of the Santa Monica address, though they used it to obtain a DUNS number, which they subsequently used. Thus, the maximum interaction between Solan Games and the state of California is that Solan Games' product is sold in California and that Solan Games used a California address to obtain a DUNS number. These contacts are insufficient to support specific jurisdiction. (*Walden v. Fiore* (2014) 571 U.S. 277)

Balinska also contends that Solan Games is estopped from contesting personal jurisdiction because it held itself out as a California corporation to her, in its privacy policy, and in invoices. (*Opposition*, p. 8.) This argument fails for two reasons. First, waiver requires intentional representation that a business operates in a jurisdiction to support a waiver finding. (*Ins. Corp. of Ireland, Ltd. v. Compagnie des Bauxites de Guinee* (1982) 456 U.S. 694, 705.) All uses of Solan Games' Santa

Monica address are explained by fact that it is the address associated with Solan Games' DUNS number. This single use of the Santa Monica address when registering with Dun & Bradstreet is insufficient to support waiver finding. Second, the case Balinska cites to support this argument is not even about personal jurisdiction. It primarily addresses establishing jurisdiction in Federal Court as a Rule 37 sanction, a fundamentally different legal issue from the one before this court. (*Ins. Corp. of Ireland, Ltd. v. Compagnie des Bauxites de Guinee* (1982) 456 U.S. 694, 695 ["May a district court, as a sanction for failure to comply with a discovery order directed at establishing jurisdictional facts, proceed on the basis that personal jurisdiction over the recalcitrant party has been established?"].)1

California does not have jurisdiction over Defendants.

Conclusion

Solan Games' Motion to Quash Service of Process is GRANTED. This case is dismissed as to Defendant Solan Games.